

24PSCV00837 24PSCV00837

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 24PSCV00837 Hearing Date: July 22, 2026 Dept: H

Cosme, et al. v. Lewis,

et al., Case

No. 24PSCV00837

ORDER ON MOTION TO SET ASIDE DISMISSAL

Plaintiffs

Ric Cosme,

Vida Toreja, Bianca Valmeo, and Vivian Valmeo's Motion to Set Aside Dismissal is GRANTED. The Court orders Case No. 24PSCV00837 restored to its active case list.

Background

Plaintiffs Ric Cosme,

Vida Toreja, Bianca Valmeo and Vivian Valmeo (together, "Plaintiffs") allege that they sustained injuries and damages in a March 18, 2022 motor vehicle accident on Arrow Highway in Irwindale.

On March 18, 2024, Plaintiffs filed a complaint, asserting causes of action against Terence Lewis and Does 1-10 for: (1) Motor Vehicle and (2) General Negligence.

On December 11, 2025, the Court ordered Plaintiff's complaint dismissed, without prejudice.

Legal Standard

“The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. . .” (Code Civ. Proc., § 473, subd. (b).)

Discussion

Plaintiff moves the Court for an order, pursuant to Code of Civil Procedure section 473, setting aside the December 11, 2025 dismissal of this case without prejudice.

The docket reflects that on December 11, 2025, the Court ordered Plaintiff's complaint dismissed without prejudice after Plaintiff failed to appear at the Order to Show Cause Re: Why the Matter Should Not be Dismissed for Plaintiff's Failure to Prosecute; Case Management Conference; Order to Show Cause Re: Failure to File Proof of Service and Order to Show Cause Re: Sanctions for Plaintiffs' Counsel's Failure to Appear on 8/5/2024.

Plaintiffs' counsel N. Joe P. Innumerable

(“Innumerable”) attests, in relevant part, that “[i]t is my understanding that the court held a hearing on this matter on December 11, 2025 at which time I am informed that the court dismissed the matter for failure to prosecute. I was not aware that the matter was set for hearing on that date. I have had personal health and stress issues that had affected my ability to properly move forward with prosecuting this case scheduling the hearing. Those issues are ow behind me.” (Innumerable Decl., ¶ 2.)

Plaintiff

has timely sought relief from the dismissal and has provided the Court with an attorney affidavit demonstrating "mistake, inadvertence, surprise, or excusable neglect" pursuant to Code of Civil Procedure § 473, subdivision (b). The motion is granted, and the case is ordered restored to the civil active list.